

Witness our hands and seals this 26 day of December, 2001.


JUDITH F. CARR, Trustee

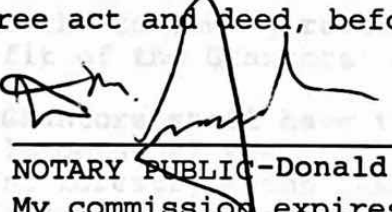

JOSEPH S. PERKINS, JR.,
Trustee

COMMONWEALTH OF MASSACHUSETTS

Essex, ss

December 26, 2001

Then personally appeared the above named JUDITH F. CARR and JOSEPH S. PERKINS, JR., Trustees as aforesaid, and acknowledged the foregoing instrument to be their free act and deed, before me


NOTARY PUBLIC-Donald M. Greenough
My commission expires:
October 11, 2007

DEED

WE, JUDITH F. CARR and JOSEPH S. PERKINS, JR., as Trustees of
The Joseph S. Perkins Nominee Trust, u/d/t July 24, 1986,
recorded in the Essex South District Registry of Deeds,
Book 8405, Page 560,

in consideration of \$100,000.00

paid

grant with QUITCLAIM COVENANTS

to BTA/BOLT, Inc., a Massachusetts charitable corporation having
its principal office at 7 Elm Street, Boxford, Essex County,
Massachusetts

2001122800571 Bk:18118 Pg:470
12/28/2001 13:16:00 DEED Pg 1/2

~~whose address is~~

the following described premises in Boxford, Essex County, Massachusetts:

A parcel of land, comprised of 17.78 acres more or less, shown as
"Lot A" on the plan entitled "Plan of Land in Ipswich, Topsfield
& Boxford, Massachusetts, prepared for Heirs of the Estate of
Harry S. Perkins", dated July 28th, 1987, revised February 23,
1988, recorded in the Essex South District Registry of Deeds,
Plan Book 240, Plan 3.

The parcel is conveyed subject to the following restrictions
and reserved rights for the benefit of the Grantors' other land:

- (1) For five (5) years, the Grantors shall have the right
to harvest firewood for reasonable personal use, and for for
commercial sale, following prudent forestry techniques, on a
sustainable annual yield, as a managed woodlot; and
- (2) The burial site shall not be disturbed and the
Grantors shall have a right to travel across the granted
premises to the burial site. The Grantors shall be solely
responsible for the care and maintenance of the burial site.

PROPERTY ADDRESS: 9-Rear Ipswich Road
Boxford, MA 01921

Return to:
BTA/BOLT, INC
P.O. Box 95
Boxford, MA 01921

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MCA
MASSACHUSETTS
CONVEYANCERS
ASSOCIATION

(11-19-84)

J.F.C.

J.S.P.

Being the same premises described in deed of Henry J. Perkins, et al., dated January 8, 1988, recorded in the Essex South District Registry of Deeds, Book 9538, Page 591.

All rights of homestead and other interests are also released.

Executed under seal this 26th day of December, 2001.

2001122800571 Bk:18118 Pg:471
12/28/2001 13:16:00 DEED Pg 2/2

SALEM
DEEDS REG 10
ESSEX SOUTH
12/28/01 11:19 PM
000000 #7541
FEE \$456.00
CASH \$456.00

Judith F. Carr
JUDITH F. CARR, Trustee

Joseph S. Perkins, Jr.
JOSEPH S. PERKINS, JR., Trustee

COMMONWEALTH OF MASSACHUSETTS
County of Essex ss.

From the office of:

Donald M. Greenough, Atty.
P.O. Box 790, 2 Depot Square
Ipswich, MA 01938

On this 26 day of December, 2001,
before me personally appeared the above named
Judith F. Carr and Joseph S.
Perkins, Jr., Trustees aforesaid,

and acknowledged the foregoing instrument to be
their free act and deed

Telephone: (978) 356-1040

Donald M. Greenough

Notary
Public

Name (Print): -Donald M. Greenough
My commission expires Oct. 11, 2007

Return to: _____



DEED

2001122800572 Bk:18118 Pg:472
12/28/2001 13:16:00 DEED Pg 1/2

2/15
WE, JUDITH F. CARR and JOSEPH S. PERKINS, JR., individually and as Trustees of The Joseph S. Perkins Nominee Trust, u/d/t July 24, 1986, recorded in the Essex South District Registry of Deeds, Book 8405, Page 560, in consideration of \$1.00 paid

grant

to BTA/BOLT, Inc., a Massachusetts charitable corporation having its principal office at 7 Elm Street, Boxford, Essex County, Massachusetts

whose address is

all right, title and interest in the following described premises in Boxford, Essex County, Massachusetts:

The area containing 26,275 s.f., and shown as "Easement for Future Right of Way", on the plan entitled "Plan of Land in Ipswich, Topsfield, Boxford, Massachusetts, prepared for Heirs of the Estate of Harry S. Perkins", dated July 28th, 1987, revised February 23, 1988, recorded in the Essex South District Registry of Deeds, Plan Book 240, Plan 3.

See Agreement, dated March 30, 1995, recorded in said Registry, Book 12982, Page 511.

The area is conveyed subject to the following restrictions and reserved rights for the benefit of the Grantors' other land:

- (1) The surfaces of any trail or path shall be dirt or grass and used only for hiking, cross-country skiing, horseback riding and other non-motorized activities; and
- (2) The Grantors shall have a right to travel across the granted premises to the burial site located on Lot A on the above-referenced plan.

PROPERTY ADDRESS: 9-Rear Ipswich Road
Boxford, MA 01921

Return to:
BTA/BOLT
P.O. Box 95
Boxford, MA
01921

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(11-19-84)

Being the same premises described in deed of Henry J. Perkins, et al., dated January 8, 1988, recorded in the Essex South District Registry of Deeds, Book 9538, Page 591.

All rights of homestead and other interests are also released.

Executed under seal this 26th day of December, 2001.

Judith F. Carr
JUDITH F. CARR, Individually & as Trustee

Joseph S. Perkins, Jr.
JOSEPH S. PERKINS, JR., Individually & as Trustee

A parcel of land, comprised of 17.73 acres more or less, located in Boxford, Essex County, Massachusetts, shown as "Lot A" on the plan of land entitled "Plan of Land in Boxford, Massachusetts, prepared for the County of Essex ss.

From the office of:

Donald M. Greenough, Atty.
P.O. Box 790, 2 Depot Square
Ipswich, MA 01938

On this 26 day of December, 2001, before me personally appeared the above named

JUDITH F. CARR and JOSEPH S. PERKINS, JR., individually and as Trustees aforesaid, and acknowledged the foregoing instrument to be their free act and deed

Telephone: (978) 356-1040

Donald M. Greenough
Name (Print)-Donald M. Greenough
My commission expires Oct. 11, 2007

Notary Public

Return to: _____



3
25

9- Rear Ipswich Road
Boxford, MA

Examined as a sealed document this

DEED

William R. Burns, of Salem, Massachusetts, Jeremiah S. Burns, of Salem, Massachusetts, and Henry J. Burns, of Waterford, Maine

For nominal consideration paid of less than One Hundred (\$100.00) Dollars,

grant to BTA/BOLT, Inc., a Massachusetts non-profit corporation with a principal office of 7 Elm Street, Boxford, Massachusetts 01921,

All their right, title and interest in and to the following two parcels:

Parcel One

A parcel of land, comprised of 17.78 acres more or less, located in Boxford, Essex County, Massachusetts, shown as "Lot A" on the plan of land entitled "Plan of Land in Ipswich, Topsfield & Boxford, Massachusetts, prepared for Heirs of the Estate of Harry S. Perkins" and dated July 28, 1987, revised February 3, 1988, and recorded with the Essex South Registry of Deeds at Plan Book 240, Page 3 ("The Plan");

Parcel Two

A parcel of land, comprised of 26,275 square feet more or less, shown as "Easement for Future Right of Way" on The Plan.

For Grantors' Title to Parcels One and Two, see Estate of Harry S. Perkins, Essex County, Massachusetts, Probate Docket No. 265008; Estate of Lucretia J. Burns, Essex County, Massachusetts, Probate Docket No. 95P-0335; Estate of Joseph S. Perkins, Essex County, Massachusetts, Probate Docket No. 91P-1878; and Estate of Henry J. Perkins, District of Washington, Vermont, Probate Docket No. 27434.

William F. [Signature]
Name:
Notary Public
My commission expires 9/9/05

Return to: BTA/BOLT, Inc.,
P.O. Box 95
Boxford, MA 01921

Executed as a sealed document this 10th day of July, 2001.

William R. Burns
William R. Burns

Then personally appeared the above-named William R. Burns, and acknowledged
the foregoing instrument to be his free act and deed, before me,

Jeremiah S. Burns
Jeremiah S. Burns

Henry J. Burns
Henry J. Burns

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

July 10, 2001

Then personally appeared the above-named William R. Burns, and acknowledged
the foregoing instrument to be his free act and deed, before me,

William F. Quinn
Name:
Notary Public
My commission expires: 9/9/05

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

July 10, 2001

Then personally appeared the above-named Jeremiah S. Burns, and acknowledged
the foregoing instrument to be his free act and deed, before me,

William F. Quinn
Name:
Notary Public
My commission expires: 9/9/05

STATE OF MAINE

OXFORD, ss.

July 10, 2001

Then personally appeared the above-named Henry J. Burns, and acknowledged the foregoing instrument to be his free act and deed, before me,

For nominal consideration paid of less than One

Brenda J. Bigonski

Name:

Notary Public

My commission expires:

Brenda J. Bigonski, Notary Republic
State of Maine
Term Expires July 21, 2005

All their right, title and interest in and to the following two parcels:

Parcel One

A parcel of land, comprised of 17.78 acres more or less, located in Buxford, Essex County, Massachusetts, shown as "Lot A" on the plan of land entitled "Plan of Land in Ipswich, Topsfield & Buxford, Massachusetts, prepared for Heirs of the Estate of Harry S. Perkins" and dated July 28, 1937, revised February 1, 1938, and recorded with the Essex South District Registry of Deeds, at Plan Book 240, Page 3 ("The Plan"); and

Parcel Two

A parcel of land, comprised of 26,275 square feet more or less, shown as "Easement for Future Right of Way" on The Plan.

For Grantors' Title to Parcels One and Two, see Estate of Harry S. Perkins, Essex County, Massachusetts, Probate Docket No. 263098; Estate of Loretta J. Burns, Essex County, Massachusetts, Probate Docket No. 95P-0335; Estate of Joseph S. Perkins, Essex County, Massachusetts, Probate Docket No. 91P-1378, and Estate of Henry J. Perkins, District of Washington, Vermont, Probate Docket No. 27434.

Return to: BTA/BOLT, Inc.
P. O. Box 95
Buxford, MA 01931

DEED

/Anne J. Derosier, formerly known as
Anne J. Campbell, of Kissimmee, Florida, Judith F. Carr, of Boxford, Massachusetts,
Deborah S. Bouranis, of Ipswich, Massachusetts, and Joseph S. Perkins, Jr., of
Peabody, Massachusetts,

For nominal consideration paid of less than One Hundred (\$100.00) Dollars,
grant to Joseph S. Perkins, Jr. and Judith F. Carr, as Trustees of the Joseph S. Perkins
Nominee Trust, under Declaration of Trust dated July 24, 1986 and recorded with the
Essex South District Registry of Deeds at Book 8405, Page 560, which trust has a
mailing address of 7 Ipswich Road, Boxford, Massachusetts 01921

All their right, title and interest in and to the following two parcels:

Parcel One

A parcel of land, comprised of 17.78 acres more or less, located in
Boxford, Essex County, Massachusetts, shown as "Lot A" on the plan of
land entitled "Plan of Land in Ipswich, Topsfield & Boxford,
Massachusetts, prepared for Heirs of the Estate of Harry S. Perkins" and
dated July 28, 1987, revised February 3, 1988, and recorded with the
Essex South District Registry of Deeds at Plan Book 240, Page 3 ("The
Plan"); and

Parcel Two

A parcel of land, comprised of 26,275 square feet more or less, shown as
"Easement for Future Right of Way" on The Plan.

For Grantors' Title to Parcels One and Two, see Estate of Harry S. Perkins, Essex
County, Massachusetts, Probate Docket No. 265008; Estate of Lucretia J. Burns, Essex
County, Massachusetts, Probate Docket No. 95P-0335; Estate of Joseph S. Perkins, Essex
County, Massachusetts, Probate Docket No. 91P-1878; and Estate of Henry J. Perkins,
District of Washington, Vermont, Probate Docket No. 27434.

Return to: BTA/BOLT, Inc.
P. O. Box 95
Boxford, MA 01921

9 - Rear Ipswich Road
Boxford, MA

Executed as a sealed document this 10 day of July, 2001.

Anne J. Derosier
Anne J. Derosier, formerly known as
Anne J. Campbell

Joseph S. Perkins, Jr.
Joseph S. Perkins, Jr.

Judith F. Carr
Judith F. Carr

Deborah S. Bouranis
Deborah S. Bouranis

STATE OF FLORIDA

Osceola County

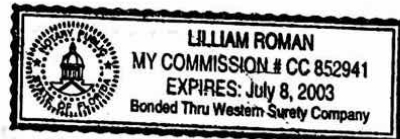
10 July, 2001

Then personally appeared the above-named Anne J. Campbell, and acknowledged the foregoing instrument to be her free act and deed, before me,

FL DL D626050 418460

/Anne J. Derosier, formerly known as
Name:
Notary Public
My commission expires:

Lillian Roman



COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

June 15, 2001

Then personally appeared the above-named Joseph S. Perkins, Jr., and acknowledged the foregoing instrument to be his free act and deed, before me,

Ann Marie Cornacchia

Name: Ann Marie Cornacchia

Notary Public

My commission expires:
November 8, 2007

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

June 15, 2001

Then personally appeared the above-named Judith F. Carr, and acknowledged the foregoing instrument to be her free act and deed, before me,

Ann Marie Cornacchia

Name: Ann Marie Cornacchia

Notary Public

My commission expires:
November 8, 2007

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

June 15, 2001

Then personally appeared the above-named Deborah S. Bouranis, and acknowledged the foregoing instrument to be her free act and deed, before me,

Ann Marie Cornacchia

Name: Ann Marie Cornacchia

Notary Public

My commission expires:
November 8, 2007

ESSEX COUNTY GREENBELT ASSOC.
82 EASTERN AVE.
ESSEX, MA 01929

CONSERVATION RESTRICTION

The undersigned, BTA/BOLT, INC., a Massachusetts not for profit corporation having its principal place of business at 7 Elm Street, Boxford, Essex County, Massachusetts 01921 for nominal consideration, hereby grants, with quitclaim covenants, to ESSEX COUNTY GREENBELT ASSOCIATION, INC., a Massachusetts not for profit corporation having its principal office at 82 Eastern Avenue, Essex, Essex County, Massachusetts 01929, its successors and permitted assigns, in perpetuity and exclusively for conservation purposes, a Conservation Restriction on the parcels of land located in Boxford, Essex County, Massachusetts described in Exhibit A attached hereto and incorporated herein by reference (the "Premises"). Said BTA/BOLT, INC. and its successors in title to the Premises are hereinafter called the "Grantor" and Essex County Greenbelt Association, Inc. and its successors and permitted assigns are hereinafter called the "Grantee". For Grantor's title see deed recorded with Essex County South District Registry of Deeds at Book 18118, Page 470, and Book 18118, Page 472.

Whereas, the Premises provides significant scenic, aesthetic, scientific and education value in its present state as a natural area and open space which has not been subjected to development incompatible with said uses; and

Whereas, the Grantor and Grantee recognize the uniqueness of the Premises as a Massachusetts landscape embodying the special character of the region in which the Premises is located and have the common purpose of conserving the natural values of the Premises for this generation and future generations; and

Whereas, the Premises is adjacent to Cleaveland Farms State Forest, which is owned and managed by the Massachusetts Department of Environmental Management; and

Whereas, the Premises is adjacent to a perpetual conservation restriction held by the Grantee; and

Whereas, the Premises contains an existing trail network which is linked to a regional trail system;

Therefore, in order to preserve the Premises in perpetuity in its present natural, scenic, and open condition, the Grantor conveys to the Grantee a perpetual Conservation Restriction within the meaning of Chapter 184, Section 31 et. seq. of the General Laws of Massachusetts, as amended. The terms of this Conservation Restriction are as follows:

1. Prohibited Activities. Except as otherwise herein provided, the Grantor shall neither perform nor permit others to perform any of the following acts or uses on, over or under the Premises:

- (a) Construction or placing of any building, tennis court, landing strip, mobile home, swimming pool, recreational field, septic system, road, sign, fence, billboard or other advertising display, utilities, conduits, poles, antennas, towers, windmills, solar panels or other temporary or permanent structures or facilities on, over or under the ground;
- (b) Dumping or placing of soil, grass clippings, compost, yard debris or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, refuse, solid or chemical waste or unsightly or offensive materials, or the installation of underground storage tanks;
- (c) Cutting, removal or destruction of trees, grasses, shrubs or other vegetation;
- (d) Mining, excavating, dredging or removal of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits except as necessary for proper drainage or soil conservation and then only in a manner which does not impair the purposes of this Conservation Restriction;
- (e) Any commercial or industrial use or any institutional use inconsistent with the purposes of this Conservation Restriction;

- (f) Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and snowmobiles, except such as may be reasonably required by police, firemen or other governmental agents in carrying out their lawful duties and except for cars, trucks and farm vehicles used for purposes permitted by this Conservation Restriction;
- (g) Use of the Premises except for forestry or outdoor recreational purposes or other purposes which permit the Premises to remain predominantly in its natural condition;
- (h) Activities detrimental to drainage, flood control, water or soil conservation, water quality, or erosion control;
- (i) Any other use of the Premises or activity which would impair the conservation values unless such use or activity is necessary and desirable for the protection of the conservation values that are subject to this Conservation Restriction;
- (j) Conveyance of a part or portion of the Premises alone, or division or subdivision of the Premises (as compared to conveyance of the Premises in its entirety which shall be permitted, subject to the provisions of paragraphs 8 and 10 hereof) without the prior written approval of the Grantee.

2. Reserved Rights. Notwithstanding anything contained in paragraph 1, the Grantor reserves the right to conduct or permit the following activities on the Premises:

- (a) Any activities designed to enhance the ecological or natural historical value of the Premises or to enhance the awareness of such values, including but not limited to the creation of dirt or grass trails, boardwalks and the placing of informative signs and benches, including suitable signs identifying Grantor as the owner of the Premises.

3. Affirmative Covenants of the Grantor. The Grantor shall pay before delinquency all taxes, assessments, fees and charges levied on or assessed against the Premises by competent authority (collectively "taxes"), and shall furnish the Grantee with satisfactory evidence of payment upon request.

4. Access by the Grantee. The Grantee through its duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Premises following reasonable notice and at reasonable times and in a reasonable manner for the purpose of inspecting the Premises, determining compliance with the terms of this Conservation Restriction and preventing, abating or remedying any violations thereof. The Grantee shall have the right, but not the obligation, at its sole expense, to perform any act required to preserve, conserve or promote the natural habitat of wildlife or plants located on the Premises. The Grantee shall have the right to erect and from time to time replace, at appropriate locations near the boundaries of the Premises, suitable signs identifying the Grantee as the holder of this Conservation Restriction.

5. Access by the Public. The Grantor and the Grantee agree that the general public may pass and repass on foot, skis, horseback or other non-motorized means over the Premises. Use of the Premises by the general public shall be subject to whatever schedule, rules and regulations the Grantor and Grantee shall determine are appropriate to protect public safety and the natural and scenic values of the Premises. To the extent permitted by law, the Grantor and the Grantee hereby expressly disclaim any duty to maintain the Premises or warn persons who may enter upon the same. Pursuant to M.G.L. c. 21, s. 17c, the Grantor is not liable to any member of the public who uses the Premises for injuries to person or property sustained by such person while on the Premises in the absence of willful, wanton, or reckless conduct by the Grantor.

6. Legal Remedies of the Grantee. The rights hereby granted shall include the right to take any and all actions with respect to the Premises as may be necessary or appropriate, with or without order of court, to remedy, abate or otherwise enforce any violations hereof, as well as the right to enforce this Conservation Restriction by appropriate legal proceedings and to obtain injunctive and other equitable relief against any violations, including without limitation relief requiring restoration of the Premises to its condition at the time of this grant (it being agreed that the Grantee may have no adequate remedy at law), and shall be in

addition to, and not in limitation of, any other rights and remedies available to the Grantee. The Grantor and the successors and assigns of the Grantor covenant and agree to reimburse the Grantee for all reasonable costs and expenses (including without limitation reasonable counsel fees) incurred in enforcing this Conservation Restriction or in taking reasonable measures to remedy or abate any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by the Grantor or determined by a court of competent jurisdiction to have occurred. By its acceptance, the Grantee does not undertake any liability or obligation relating to the condition of the Premises. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver. If any provision of this Conservation Restriction shall to any extent be held invalid, the remainder shall not be affected.

7. Assignment by the Grantee. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign its right, title and interest hereunder to a "Qualified Organization" as defined in Section 170 (h) (3) of the Internal Revenue Code provided that such assignee shall also be an eligible donee of a conservation restriction as set forth in Chapter 184, Section 32 of the General Laws of Massachusetts, and provided further that, as a condition of such assignment, the assignee is required to hold this Conservation Restriction and enforce its terms for conservation purposes.

8. Subsequent Transfers. The Grantor agrees to incorporate the terms of this Conservation Restriction by reference in any deed or other legal instrument by which they divest themselves of any interest in all or a portion of the Premises, including without limitation, a leasehold interest.

9. Representations of the Grantee. The Grantee represents that it is a not for profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it is a "Qualified

Organization" as that term is defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended.

10. Required Notifications of Transfers. The Grantor shall notify the Grantee in writing at least thirty (30) days before conveying the Premises, or any part thereof or interest therein (including a lease). The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction. Any failure by Grantor or Grantee to provide notification as provided for herein shall not invalidate or extinguish this Conservation Restriction.

11. Notice and Approval With Respect to the Grantor's Activities. Whenever notice to or approval by the Grantee is required under the provisions of paragraphs 1 or 2, the Grantor shall notify the Grantee in writing not less than thirty (30) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required, the Grantee shall grant or withhold its approval in writing within thirty (30) days of receipt of the Grantor's written request therefor.

12. Proceeds from Extinguishment; Eminent Domain. The Grantor and Grantee agree that the donation of this Conservation Restriction gives rise for purposes of this paragraph to a property right, immediately vested in the Grantee, with a fair market value determined by multiplying the current fair market value of the Premises unencumbered by this Conservation Restriction (minus any increase in value attributable to improvements made after the date of this grant) by the ratio of the value of this Conservation Restriction at the time of this grant to the value of the Premises, without deduction for the value of this Conservation Restriction, at the time of this grant. Such proportionate value of the Grantee's property right shall remain constant. If any change in conditions ever gives rise to extinguishment or other release of the Conservation Restriction under applicable law, then the Grantee, on a subsequent sale, exchange or involuntary conversion of the Premises, shall be entitled to a portion of the proceeds equal to such proportionate value, subject however, to any applicable law which expressly provides for a different disposition of proceeds.

Whenever all or any part of the Premises or any interest therein is taken by public authority under power of eminent domain, or if all or any part of this Conservation Restriction is otherwise extinguished by act of public authority then the Grantor and the Grantee shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by the Grantor and the Grantee shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed between the Grantor and the Grantee in shares equal to such proportionate value. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purpose set forth therein.

13. Binding Effect; Interpretation. The burdens of this Conservation Restriction shall be deemed to run with the Premises, shall be enforceable in perpetuity against the Grantor, the Grantor's successors in title to the Premises, and any person holding any interest therein, by the Grantee, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction. This Conservation Restriction shall be in addition to and not in lieu of any other restrictions or easements of record affecting the Premises. The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction; and the Grantor on behalf of themselves and their successors and assigns appoint the Grantee their attorney-in-fact to execute, acknowledge and deliver any such instruments on their behalf. Without limiting the foregoing, the Grantor and their successors and assigns agree themselves to execute any such instrument upon request.

14. Effective Date. The Grantor and the Grantee intend that the restrictions arising hereunder take effect when all the requisite signatures pursuant to Section 32 of Chapter 184 of the General Laws of Massachusetts have been obtained and this document has been recorded in the Registry of Deeds.

15. Termination of Rights and Obligations. Notwithstanding anything to the contrary contained herein, the rights and obligations under this Conservation Restriction of any party holding any interest in the Premises terminate upon transfer of that party's interest, except that liability for acts or omissions occurring prior to transfer, and liability for the transfer itself if the transfer is in violation of this Conservation Restriction, shall survive the transfer.

estoppel certificate, which certifies the Grantors' compliance with any obligation of the Grantor contained in this Conservation Restriction, and which otherwise evidences the status of this Conservation Restriction.

17. Miscellaneous. Approval of this Conservation Restriction pursuant to M.G.L. Chapter 184, Section 32 by any municipal officials and by the Secretary of Environmental Affairs is not to be construed as representing the existence or non-existence of any pre-existing rights of the public, if any, in and to the Premises, and any such pre-existing rights of the public, if any, are not affected by the granting of this Conservation Restriction.

IN WITNESS WHEREOF, the said BTA/BOLT, INC ^{has}~~have~~ hereunto set ^{its}~~their~~ hands and seals this 28th day of December, 2001.

BTA/BOLT, INC.

BTA/BOLT, INC.

George A. Horner
By: George A. Horner
Its: Treasurer

Judith A. Gore
By: Judith A. Gore
Its: President

COMMONWEALTH OF MASSACHUSETTS

Essex, SS.

December 28, 2001

Then personally appeared before me the above-named George A. Horner & Judith A. Gore and acknowledged the foregoing instrument to be their free act and deed.

PETER E. BERNARDIN
NOTARY PUBLIC
MY COMMISSION EXPIRES AUGUST 22, 2008

Peter Bernardin
Notary Public
My Commission Expires:

Essex County Greenbelt Association, Inc. hereby accepts this Conservation Restriction and agrees to be bound by its terms.

We, the undersigned Board of Selectmen of the Town of Boxford, Mass., hereby certify that at a meeting duly held on May 18, 2001 the Selectmen voted to approve the foregoing Conservation Restriction of Essex County Greenbelt Association, Inc. for the preservation of the natural resources of said Town pursuant to Massachusetts General Laws Chapter 134, Section 32.

Essex County Greenbelt Association, Inc.

By: Arthur C. Hodges
hereunto duly authorized

COMMONWEALTH OF MASSACHUSETTS

Suffolk, ss.

May 18, 2001

Then personally appeared before me the above-named Arthur C. Hodges and acknowledged the foregoing instrument to be their free act and deed.

James M. Lusk
Notary Public

My Commission Expires: 12-14-01

APPROVAL BY SELECTMEN

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that at a meeting duly held on June 18, 2001 the Selectmen voted to approve the foregoing Conservation Restriction to the Essex County Greenbelt Association, Inc. for the preservation of the natural resources of said Town pursuant to Massachusetts General Laws Chapter 184, Section 32.

Kirk D. Plavsky
L. C. Was
M. B. Galt
C. E. H.
Barbara D. Jones